

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased:

-----X
PEDRO MARTINEZ,

Plaintiff designates

Bronx County as the place of trial

Plaintiff,

The basis of the venue is where the
tort arose and where Plaintiff resides.

-against-

CITY OF NEW YORK, individually and in their official
capacities as New York City police officers, CHRISTINE
JOACHIM and JOHN or JANE DOE 1-10,

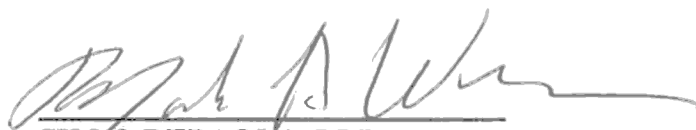
SUMMONS

Defendants.
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TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
June 27, 2019



SIM & DEPAOLA, LLP

By: Markus A. Wilson, Esq.

Attorneys for Plaintiff(s)

42-40 Bell Boulevard Suite 201

Bayside, New York 11361

(718) 281-0400

TO:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

**P.O. CHRISTINE JOACHIM OF THE 46 PCT.
SHIELD #7061, TAX ID #961839**

2120 Ryer Avenue
Bronx, New York 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X Index No.:
PEDRO MARTINEZ,Plaintiff,
-against-**VERIFIED COMPLAINT**CITY OF NEW YORK, individually and in their official
capacities as New York City police officers, CHRISTINE
JOACHIM and JOHN or JANE DOE 1-10,Defendants.
-----X

Plaintiff, Pedro Martinez, by his attorneys, Sim & DePaola, LLP, for his complaint
against the above Defendants, alleges as follows:

1. The claim arises from a May 19, 2018 incident in which defendants, acting under color of state law, unlawfully arrested and detained Pedro Martinez at approximately 12:30 A.M. in the vicinity of the corner of West 174th Street and University Avenue, County of the Bronx, State of New York. Pedro Martinez was subsequently charged with Unauthorized Use of a Vehicle. As a result, Mr. Martinez was deprived of his liberty and suffered physical and psychological injuries. Mr. Martinez was wrongfully incarcerated over the course of two (2) days or approximately thirty-six (36) hours. He was maliciously prosecuted, until the dismissal of all charges on September 13, 2018 before the Hon. Judge Collins of the Bronx County Criminal Court.
2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

3. Plaintiff Pedro Martinez ("Mr. Martinez") resides at 1244 Boynton Avenue, Apt.1R, Bronx, New York, 10472
4. The Defendant City of New York ("City") is a municipal corporation organized under the laws of the State of New York.
5. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or "NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
7. Defendant Police Officer Christine Joachim ("Joachim") was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Joachim was, at all times relevant herein, a Police Officer under Shield #7061, Tax ID No. 961839 at the 46th Precinct, located at 2120 Ryer Ave, The Bronx, NY 10457. Defendant Joachim is being sued in her individual and official capacities.
8. At all times relevant Defendants John or Jane Doe 1-10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names and/or tax registry numbers of Defendants John or Jane Doe 1-10, but such knowledge is believed to in possession of the defendants.

9. At all times relevant herein, Defendants John or Jane Doe 1-10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John or Jane Doe 1-10 are being sued in their individual and official capacities.
10. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
11. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.
12. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
13. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.
14. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

15. On May 19, 2018 at approximately 12:30 A.M., Mr. Martinez was inside of a vehicle, which he believed belonged to the driver Lavar, in the vicinity of the corner of West 174th Street and University Avenue, County of Bronx, State of New York.
16. On said date, time and location, Mr. Martinez was a passenger in said vehicle seated in the back-passenger seat.
17. On said date, time and location, Lavar pulled over said vehicle for gas and was obeying all traffic laws.

18. On said date, time and location, Defendants, including Joachim, unlawfully approached the said vehicle with their guns drawn without any probable cause or reasonable suspicion to do so.
19. Mr. Martinez did not commit any crimes or violations of the law.
20. Then Defendants, including Joachim, yelled "Don't move!", "Sit the fuck down!" and "Keep your hands up!", which caused Mr. Martinez great alarm and fear.
21. Then Defendants, including Joachim, unlawfully commanded all occupants of said vehicle, including Mr. Martinez to exit the vehicle without probable cause or other justification for doing so.
22. Then Defendants, including Joachim, commanded Mr. Martinez to turn around and placed handcuffs on him without any probable cause or other justification for doing so.
23. Defendants, including Joachim, then illegally searched Mr. Martinez even though there was no probable cause to do so, as there were no indicia of criminal activity present. However, no contraband was recovered.
24. Mr. Martinez did not commit any crimes or violate any law and was simply sitting in the back-passenger seat of the vehicle with his seat belt on.
25. Defendant Joachim was Mr. Martinez's arresting officer under arrest No. B18623296.
26. Mr. Martinez had multiple assaults and batteries committed to his person, including but not limited to, being placed in handcuffs too tightly.
27. Defendants, including Joachim, then illegally searched said vehicle without any other legal right to do so.
28. Then Plaintiff was put in a police vehicle and transported to the 46th precinct.
29. At the precinct Plaintiff was held in a cell for approximately eighteen (18) hours.

30. Then Plaintiff was transported to the Central Booking for a crime he did not commit.
31. Mr. Martinez did not commit any crimes or violations of the law.
32. Upon arrival at the Central Booking Plaintiff was put in a cell and illegally fingerprinted and photographed.
33. Defendants, including Joachim, intentionally provided said false information to the Bronx County District Attorney's Office, so that a criminal prosecution would be initiated against Mr. Martinez, namely that he committed Unauthorized Use of a Vehicle.
34. Defendant Joachim signed her criminal court complaint under Docket No. 2018BX017368, knowingly and falsely accusing Mr. Martinez of Unauthorized Use of a Vehicle, all of which Joachim knew to be untrue and a complete fabrication.
35. Mr. Martinez was arraigned and formally charged with one (1) count of Unauthorized Use of a Vehicle.
36. At no point did Defendants, including Joachim, ever observe Mr. Martinez commit any crime or offense.
37. At no point were the defendants, including Joachim, ever told by any witnesses that Mr. Martinez committed any crime or violation of the law.
38. Defendants, including Joachim, had no probable cause or reasonable suspicion to arrest, detain or stop Mr. Martinez.
39. Defendants, including Joachim, were fully aware that Plaintiff did not commit any crime, but knowingly and intentionally chose to state otherwise to justify and excuse an otherwise invalid arrest.

40. While Plaintiff was unlawfully detained, Defendants, including Joachim, acting with malice, conveyed the aforementioned false, misleading and incomplete information to prosecutors in order to have Plaintiff prosecuted for Unauthorized Use of a Vehicle.
41. Defendants never possessed a legally issued warrant for plaintiff's arrest.
42. Defendants, including Joachim, intentionally, knowingly and falsely made said allegations to conceal their otherwise illegal, tortious and sinister acts, namely stopping a vehicle illegally without a search warrant, probable cause or reasonable suspicion, and arresting multiple individuals without probable cause.
43. Defendants, including Joachim, suppressed evidence and engaged in conduct undertaken in bad faith.
44. Defendants have displayed a pattern and practice of falsely alleging unauthorized use of a vehicle to be found to justify otherwise unwarranted arrests.
45. Plaintiff was wrongfully incarcerated for approximately two (2) days or approximately thirty-six (36) hours, until he was released on or about May 20, 2018.
46. During all of the events described, the Defendants, including Joachim, acted maliciously and with intent to injure Plaintiff.
47. Mr. Martinez was forced to return to court approximately two (2) times to appear on the false charge levied against him, until the charge was favorably terminated and dismissed on September 13, 2018.
48. At all times relevant hereto, Defendants, including Joachim, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause.

49. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the NYPD that resulted in Plaintiff's arrest without probable cause.
50. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have failed to provide adequate training in the identification of probable cause or reasonable suspicion.
51. The instant arrest of Plaintiff without the presence of probable cause was so egregious as to amount to the deliberate indifference by the policy and decision makers within the NYPD and City of New York, because the need for enhanced training and supervision is obvious due to the clear lack of any probable cause to arrest and prosecute Plaintiff.
52. Upon information and belief, further details and factual allegations will become available after discovery is completed, as the current policies and customs of the NYPD and City of New York are within the exclusive knowledge of Defendants.
53. Upon information and belief, the personnel files and records of the individual officers involved in Plaintiff's arrest will reveal a history of Constitutional violations that will indicate that Defendant City knew, or should have known that the individual officers were unfit for employment as NYPD police officers and would be likely to commit Constitutional violations similar to the violations that were committed against Mr. Martinez.
54. As a direct and proximate result of the acts of the defendants, including Joachim, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and

suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

- 55. The above paragraphs are here incorporated by reference as though fully set forth.
- 56. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
- 57. Plaintiff was conscious of his confinement.
- 58. Plaintiff did not consent to his confinement.
- 59. Plaintiff's arrest and false imprisonment was not otherwise privileged.
- 60. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
- 61. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
- 62. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

- 63. The above paragraphs are here incorporated by reference as though fully set forth.
- 64. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

65. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
66. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
67. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
68. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

69. The above paragraphs are here incorporated by reference as though fully set forth.
70. Defendants made plaintiff fear for his physical well-being and safety and placed his in apprehension of immediate harmful and/or offensive touching.
71. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
72. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
73. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
74. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

- 75. The above paragraphs are here incorporated by reference as though fully set forth.
- 76. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
- 77. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
- 78. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
- 79. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

- 80. The above paragraphs are here incorporated by reference as though fully set forth.
- 81. Defendants initiated the prosecution against Plaintiff.
- 82. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
- 83. Defendants acted with malice.
- 84. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.
- 85. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

86. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
87. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

88. The above paragraphs are here incorporated by reference as though fully set forth.
89. Defendants initiated the prosecution against Plaintiff.
90. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
91. Defendants acted with malice.
92. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.
93. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.
94. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
95. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

96. The above paragraphs are here incorporated by reference as though fully set forth.

97. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
98. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
99. Defendants intended to inflict substantial harm upon Plaintiff.
100. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
101. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
102. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
103. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

104. The above paragraphs are here incorporated by reference as though fully set forth.
105. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
106. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
107. Defendants intended to inflict substantial harm upon Plaintiff.
108. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

109. Defendants' actions deprived Plaintiff of his right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without due process of law.
110. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
111. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

112. The above paragraphs are here incorporated by reference as though fully set forth.
113. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
114. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
115. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
116. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

117. The above paragraphs are here incorporated by reference as though fully set forth.

118. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
119. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
120. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
121. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Retention and Supervision Under
New York State Law

122. The above paragraphs are here incorporated by reference as though fully set forth.
123. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.
124. Defendant City breached that duty of care.
125. Defendant City placed defendants in a position where they could inflict foreseeable harm.
126. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
127. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.
128. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

129. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELFTH CAUSE OF ACTION
Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 Against Defendant City

130. The above paragraphs are here incorporated by reference as though fully set forth.
131. Defendant City maintained a policy, custom or practice that caused Plaintiff to be deprived of his Constitutional right to free from illegal searches and seizures.
132. Defendant City’s illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.
133. Defendant City’s policymakers failed to provide adequate training or supervision to subordinates to such an extent that it amounts to deliberate indifference to the rights of those who come into contact with Defendant City’s employees.
134. Defendant City’s conduct violated Plaintiff’s rights under the Fourth and Fourteenth Amendments to the United States Constitution.
135. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
136. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- n) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;
Together with the costs and disbursements of this action

Dated: Bayside, New York
June 27, 2019

A handwritten signature in black ink, appearing to read 'Markus A. Wilson', is written over a horizontal line.

SIM & DEPAOLA, LLP

By: Markus A. Wilson

Attorneys for Plaintiff

4240 Bell Blvd., Suite 201

Bayside, NY 11361

T: (718) 281-0400

F: (718) 631-2700

ATTORNEY VERIFICATION

I, **Markus A. Wilson**, an attorney admitted to practice in the courts of New York State, state that I am an associate of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
June 27, 2019


MARKUS A. WILSON, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

PEDRO MARTINEZ,

Plaintiff,

-against-

CITY OF NEW YORK, individually and in their official capacities as New York City police officers, CHRISTINE JOACHIM and JOHN or JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
BY: Markus A. Wilson
Attorney for Plaintiff(s)
42-40 Bell Boulevard, Ste. 201
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for